



Date: 9-10-13

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE REPEALING CHAPTER 13.20, WASTEWATER TREATMENT AND DISPOSAL, IN ITS ENTIRETY AND RE-CREATING CHAPTER 13.20, WASTEWATER TREATMENT AND DISPOSAL, OF TITLE 13, PUBLIC SERVICES, OF THE CHEYENNE CITY CODE."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Chapter 13.20, Wastewater Treatment and Disposal, is repealed in its entirety and a new Chapter 13.20, Wastewater Treatment and Disposal, is hereby re-created as follows:

Chapter 13.20
WASTEWATER TREATMENT AND DISPOSAL

Article 1. General Pretreatment Requirements

13.20.010 Purpose and authority.

The purpose of this chapter is:

A. To establish uniform requirements for direct and indirect contributors to the wastewater collection and treatment system owned and operated by the city through its board of public utilities and to comply with applicable state and federal laws, including the Clean Water Act (33 United States Code [U.S.C.] Section 1251 et seq. and the General Pretreatment Regulations (40 C.F.R. pt 403). The objectives of this chapter are:

1. To prevent the introduction of pollutants into the Publicly Owned Treatment Works (POTW) that will interfere with its operation;
2. To prevent the introduction of pollutants into the POTW that will pass through the POTW, inadequately treated, into receiving waters, recycle or reuse systems, or otherwise be incompatible with the POTW;
3. To protect both POTW personnel who may be affected by wastewater and sludge in the course of their employment and the general public;
4. To promote reuse and recycling of industrial wastewater and sludge from the POTW;
5. To provide for fees for the equitable distribution of the cost of operation, maintenance, and improvement of the POTW; and
6. To enable the city to comply with its Wyoming Pollutant Discharge Elimination System permit conditions, sludge use and disposal requirements, and any other federal or state laws to which the POTW is subject.

B. The provisions of this chapter shall apply to all users of the POTW; authorizes the issuance of individual wastewater discharge permits; provides for monitoring, compliance, and enforcement activities; establishes administrative review procedures, and requires user reporting.

13.20.020 Administration.

Except as otherwise provided herein, the control authority shall administer, implement, and enforce the provisions of this chapter. Any powers granted to or duties imposed upon the control authority may be delegated by the control authority to a duly authorized board employee.

13.20.030 Definitions.

Unless a provision explicitly states otherwise, the following definitions of terms and phrases, as used in this chapter, shall apply in the interpretation and enforcement of this chapter:

“Act” or “the Act” means the Federal Water Pollution Control Act, also known as the Clean Water Act, as amended, 33 U.S.C. Section 1251 et seq.

“Approval authority” means the Region 8 EPA Administrator (Industrial Pretreatment Coordinator) or his or her duly authorized representative.

“Authorized representative of the user” or “duly authorized representative of the user” means:

1. If the user is a corporation:

a. The president, secretary, treasurer, or a vice-president of the corporation in charge of a principal business function, or any other person who performs similar policy or decision-making functions for the corporation; or

b. The manager of one or more manufacturing, production, or operating facilities, provided the manager is authorized to make management decisions that govern the operation of the regulated facility including having the explicit or implicit duty of making major capital investment recommendations, and initiate and direct other comprehensive measures to assure long-term environmental compliance with environmental laws and regulations; can ensure that the necessary systems are established or actions taken to gather complete and accurate information for individual wastewater discharge permit [or general permit] requirements; and where authority to sign documents has been assigned or delegated to the manager in accordance with corporate procedures.

2. If the user is a partnership or sole proprietorship:

a. A general partner or proprietor, respectively.

3. If the user is a federal, state, or local governmental facility:

a. A director or highest official appointed or designated to oversee the operation and performance of the activities of the government facility, or their designee.

4. The representatives described in paragraphs 1. through 3. above may designate a duly authorized representative if the authorization is in writing, the authorization specifies the individual or position responsible for the overall operation of the facility from which the discharge originates or having overall responsibility for environmental matters for the company, and the written authorization is submitted to the board.

"Best management practice" (BMP) or "best management practices" (BMPs) means schedules of activities, prohibitions of practices, maintenance procedures, and other management practices to implement the prohibitions listed in 40 CFR 403.5 (a) (1) and (b), and Section 13.20.050 of this chapter. BMPs include treatment requirements, operating procedures, and practices to control plant site runoff, spillage or leaks, sludge or waste disposal, or drainage from raw materials storage.

"Biochemical oxygen demand" (BOD) means the quantity of oxygen utilized in the biochemical oxidation of organic matter under standard laboratory procedures for five days at twenty (20) degrees centigrade, usually expressed as a concentration (e.g., mg/l).

"Board" or "BOPU" means the board of public utilities of the city of Cheyenne, Wyoming, or its designated representative.

"Bypass" means the intentional diversion of waste streams from any portion of an industrial user's treatment facility.

"Categorical pretreatment standard" or "categorical standard" means any regulation containing pollutant discharge limits promulgated by EPA in accordance with Sections 307 (b) and (c) of the Act (33 U.S.C. Section 1317) that apply to a specific category of users and that appear in 40 CFR Chapter I, Subchapter N, Parts 405-471.

"Categorical industrial user" means an industrial user subject to a categorical pretreatment standard or categorical standard.

"Chemical oxygen demand" or "COD" means a measure of the oxygen required to oxidize all compounds, both organic and inorganic, in water.

"City" means the city of Cheyenne, a municipal corporation of the State of Wyoming, and its BOPU.

"Control authority" means the board of public utilities (BOPU) of the city of Cheyenne, its director, water reclamation division manager or designated representative(s).

"Daily maximum" means the arithmetic average of all effluent samples for a pollutant collected during a calendar day.

"Daily maximum limit" means the maximum allowable discharge limit of a pollutant during a calendar day. Where daily maximum limits are expressed in units of mass, the daily discharge is the total mass discharged over the course of the day. Where daily maximum limits are expressed in terms of a concentration, the daily discharge is the arithmetic average measurement of the pollutant concentration derived from all measurements taken that day.

"Director" means the director of the BOPU, as defined in Wyoming Statutes, who shall have general supervision over all activities, property and employees of the BOPU, or his or her authorized representative.

"Environmental Protection Agency" or "EPA" means the United States Environmental Protection Agency or, where appropriate, the regional water management division director, the regional administrator, or other duly authorized official of said agency.

"Existing source" means any source of discharge that is not a "new source."

"Grab sample" means a sample that is taken from a waste stream without regard to the flow in the waste stream and over a period of time not to exceed fifteen (15) minutes.

"Indirect discharge" or "discharge" means the introduction of pollutants into the POTW from any nondomestic source, regulated under Section 307 (b), (c) or (d) of the Act.

"Industrial user" or "user" means any person who introduces pollutants into a POTW from any nondomestic source regulated under the Act, state law or local ordinance including but not limited to industrial, commercial, service or food service businesses.

"Instantaneous limit" means the maximum concentration of a pollutant allowed to be discharged at any time, determined from the analysis of any discrete or composited sample collected, independent of the industrial flow rate and the duration of the sampling event.

"Interference" means a discharge that, alone or in conjunction with a discharge or discharges from other sources, inhibits or disrupts the POTW, its treatment processes or operations or its sludge processes, use or disposal; and therefore, is a cause of a violation of the city's WYPDES permit or of the prevention of sewage sludge use or disposal in compliance with any of the following statutory/regulatory provisions or permits issued there under, or any more stringent state or local regulations: Section 405 of the Act; the Solid Waste Disposal Act, including Title II commonly referred to as the Resource Conservation and Recovery Act (RCRA); any state regulations contained in any state sludge management plan prepared pursuant to Subtitle D of the Solid Waste Disposal Act; the Clean Air Act; the Toxic Substances Control Act, and the Marine Protection, Research, and Sanctuaries Act.

"Local limit" means specific discharge limits developed and enforced by the control authority upon industrial or commercial facilities to implement the general and specific discharge prohibitions listed in 40 CFR 403.5 (a) (1) and (b).

“Medical waste” means isolation wastes, infectious agents, human blood and blood products, pathological wastes, sharps, body parts, contaminated bedding, surgical wastes, potentially contaminated laboratory wastes, and dialysis wastes.

“Monthly average” means the sum of all daily discharges measured during a calendar month divided by the number of ‘daily discharges’ measured during that month.

“Monthly average limit” means the highest allowable average of daily discharges over a calendar month, calculated as the sum of all daily discharges measured during a calendar month divided by the number of daily discharges measured during that month.

“National pretreatment standard”, “pretreatment standard” or “standard” means any regulation containing pollutant discharge limits promulgated by the EPA in accordance with Section 307 (b) and (c) of the Act (33 U.S.C. Section 1317) which applies to industrial users. This term includes prohibitive discharge limits established pursuant to 40 CFR, part 403.5.

“National Pollution Discharge Elimination System Permit” or “NPDES permit” means a permit issued pursuant to Section 402 of the Act (33 U.S.C. Section 1342).

“New source” means:

1. Any building, structure, facility, or installation from which there is (or may be) a discharge of pollutants, the construction of which commenced after the publication of proposed pretreatment standards under Section 307 (c) of the Act that will be applicable to such source if such standards are thereafter promulgated in accordance with that section, provided that:

a. The building, structure, facility, or installation is constructed at a site at which no other source is located; or

b. The building, structure, facility, or installation totally replaces the process or production equipment that causes the discharge of pollutants at an existing source; or

c. The production or wastewater generating processes of the building, structure, facility, or installation are substantially independent of an existing source at the same site. In determining whether these are substantially independent, factors such as the extent to which the new facility is integrated with the existing plant, and the extent to which the new facility is engaged in the same general type of activity as the existing source, should be considered.

2. Construction on a site at which an existing source is located results in a modification rather than a new source if the construction does not create a new building, structure, facility, or installation meeting the criteria of paragraphs 1. b. or c. above but otherwise alters, replaces, or adds to existing process or production equipment.

3. Construction of a new source as defined under this paragraph has commenced if the owner or operator has:

a. Begun, or caused to begin, as part of a continuous onsite construction program:

i. Any placement, assembly, or installation of facilities or equipment; or

ii. Significant site preparation work including clearing, excavation, or removal of existing buildings, structures, or facilities which is necessary for the placement, assembly, or installation of new source facilities or equipment; or

b. Entered into a binding contractual obligation for the purchase of facilities or equipment which is intended to be used in its operation within a reasonable time. Options to purchase or contracts which can be terminated or modified without substantial loss, and contracts for feasibility, engineering, and design studies do not constitute a contractual obligation under this paragraph.

"Noncontact cooling water" means water used for cooling that does not come into direct contact with any raw material, intermediate product, waste product, or finished product.

"Pass through" means a discharge which exits the POTW into waters of the United States in quantities or concentrations which, alone or in conjunction with a discharge or discharges from other sources, is a cause of a violation of any requirement of the city's WYPDES permit, including an increase in the magnitude or duration of a violation.

"Person" means any individual, partnership, co-partnership, firm, company, corporation, association, joint stock company, trust, estate, governmental entity, or any other legal entity; or their legal representatives, agents, or assigns. This definition includes all federal, state, and local governmental entities.

"pH" means a measure of the acidity or alkalinity of a solution, expressed in standard units.

"Pollutant" means dredged spoil, solid waste, incinerator residue, filter backwash, sewage, garbage, sewage sludge, munitions, medical wastes, chemical wastes, biological materials, radioactive materials, heat, wrecked or discarded equipment, rock, sand, cellar dirt, municipal, agricultural and industrial wastes, and certain characteristics of wastewater (e.g., pH, temperature, TSS, turbidity, color, BOD, COD, toxicity, or odor).

"Pretreatment" means the reduction of the amount of pollutants, the elimination of pollutants, or the alteration of the nature of pollutant properties in wastewater prior to, or in lieu of, introducing such pollutants into the POTW. This reduction or alteration can be obtained by physical, chemical, or biological processes; by process changes; or by other means, except by diluting the concentration of the pollutants unless allowed by an applicable pretreatment standard.

"Pretreatment requirements" means any substantive or procedural requirement related to pretreatment imposed on a user, other than a pretreatment standard.

"Pretreatment standards" or "standards" means prohibited discharge standards, categorical pretreatment standards, and local limits.

"Prohibited discharge standards" or "prohibited discharges" means absolute prohibitions against the discharge of certain substances; these prohibitions appear in Section 13.20.050 of this chapter.

"Publicly owned treatment works" or "POTW" means a treatment works, as defined by Section 212 of the Act (33 U.S.C. Section 1292), which is owned by the city. This definition includes any devices or systems used in the collection, storage, treatment, recycling, and reclamation of sewage or industrial wastes of a liquid nature and any conveyances, which convey wastewater to or from a treatment plant. The term also means the municipality as defined in Section 502 (4) of the Act, which has jurisdiction over the indirect discharges from such a treatment works.

"Sewer use surcharge" means a monthly charge to users of the POTW based on sewage volume, strength and/or flow.

"Septic tank waste" means any sewage from holding tanks such as vessels, chemical toilets, campers, trailers, and septic tanks.

"Sewage" means human excrement and gray water (household showers, dishwashing operations, etc.).

"Significant industrial user" or "SIU" means, except as provided in paragraphs 3. and 4. below:

1. An industrial user subject to categorical pretreatment standards; or
2. An industrial user that:
 - a. Discharges an average of twenty-five thousand (25,000) gallons per day or more of process wastewater to the POTW (excluding sanitary, noncontact cooling and boiler blow down wastewater);
 - b. Contributes a process waste stream which makes up five percent or more of the average dry weather hydraulic or organic capacity of the POTW treatment plant; or
 - c. Is designated as such by the control authority on the basis that it has a reasonable potential for adversely affecting the POTW's operation or for violating any pretreatment standard or requirement.
3. The BOPU may determine that an industrial user subject to categorical pretreatment standards is a non-significant categorical industrial user rather than a significant industrial user on a finding that the industrial user never discharges more than one hundred (100) gallons per day of total categorical wastewater (excluding sanitary, non-contact cooling and boiler blow

down wastewater, unless specifically included in the pretreatment standard) and the following conditions are met:

a. The industrial user, prior to BOPU's finding, has consistently complied with all applicable categorical pretreatment standards and requirements;

b. The industrial user annually submits the certification statement required in Section 13.20.410 of this chapter together with any additional information necessary to support the certification statement; and

c. The industrial user never discharges any untreated concentrated wastewater.

4. Upon a finding that a user meeting the criteria in paragraph 2. above has no reasonable potential for adversely affecting the POTW's operation or for violating any pretreatment standard or requirement, the BOPU may at any time, on its own initiative or in response to a petition received from an industrial user, and in accordance with procedures in 40 CFR 403.8 (f) (6), determine that such user should not be considered a significant industrial user.

"Significant noncompliance" means:

1. Chronic violations of wastewater discharge limits, defined here as those in which sixty-six (66) percent or more of all the measurements for each pollutant parameter taken during a six-month period exceed, by any magnitude, the daily maximum limit or the average limit for the same pollutant parameter;

2. Technical review criteria (TRC) violations, defined here as those in which thirty-three (33) percent or more of all the measurements for each pollutant parameter taken during a six-month period equal or exceed the product of the daily maximum limit or the average limit multiplied by the applicable TRC (TRC = 1.4 for BOD, TSS, fats, oil, and grease, and 1.2 for all other pollutants except pH);

3. Any other violation of a pretreatment effluent limit (daily maximum or longer-term average) that the BOPU determines has caused, alone or in combination with other discharges, interference or pass through (including endangering the health of POTW personnel or the general public);

4. Any discharge of a pollutant that has caused imminent endangerment to human health, welfare or to the environment or has resulted in the POTW's exercise of its emergency authority under 40 C.F.R. Section 403.8 (f) (1) (vi) (B) to halt or prevent such a discharge;

5. Failure to meet, within ninety (90) days after the schedule date, a compliance schedule milestone contained in a local control mechanism or enforcement order for starting construction, completing construction or attaining final compliance;

6. Failure to provide, within thirty (30) days after the due date, required reports such as baseline monitoring reports, ninety (90) day compliance reports, periodic self-monitoring

reports, and reports on compliance with compliance schedules;

7. Failure to accurately report noncompliance; or

8. Any other violations which the control authority determines will adversely affect the operation or implementation of the local pretreatment program.

“Slug load” or “slug discharge” means any discharge at a flow rate or concentration, which could cause a violation of the prohibited discharge standards in Section 13.20.050 of this chapter. A slug discharge is any discharge of a non-routine, episodic nature, including but not limited to an accidental spill or a non-customary batch discharge, which has a reasonable potential to cause interference or pass through, or in any other way violate the POTW’s regulations, local limits or permit conditions.

“Standard industrial classification” means a classification pursuant to the standard Industrial Classification Manual.

“State” means the State of Wyoming.

“Storm water” means any flow occurring during or following any form of natural precipitation, and resulting from such precipitation, including snowmelt.

“Toxic pollutant” means any pollutant or combination of pollutants identified as toxic pursuant to Section 307 (a) of the Act or other federal statutes or in regulations promulgated by the state under state law.

“Total suspended solids” or “suspended solids” means the total suspended matter that floats on the surface of, or is suspended in, water, wastewater, or other liquid, and that is removable by laboratory filtering.

“Water reclamation division manager” means the person designated by the BOPU to supervise the operation of the POTW, and who is charged with certain duties and responsibilities by this chapter. The term also means a duly authorized representative of the manager.

“Wastewater” means liquid and water-carried industrial wastes and sewage from residential dwellings, commercial buildings, industrial and manufacturing facilities, and institutions, whether treated or untreated, which are contributed to the POTW.

“Water reclamation facility”, “wastewater treatment plant” or “treatment plant” means that portion of the POTW which is designed to provide treatment of municipal sewage and industrial waste.

“Waters of the state” includes:

1. Both surface and groundwater within the boundaries of the state subject to its jurisdiction, including all ponds, lakes, rivers, streams, public ditches, tax ditches, and public drainage

systems within the state, other than those designed and used to collect, convey or dispose of sanitary sewage, and any other waters specified by state law; and

2. The floodplain free-flowing waters determined by the department of natural resources on the basis of one hundred (100) year flood frequency.

13.20.040 Abbreviations.

The following abbreviations, when used in this chapter, shall have the designated meanings:

C	Celsius or Centigrade
BOD	Biochemical Oxygen Demand
BMP	Best Management Practice
BMR	Baseline Monitoring Report
BOPU	Board of Public Utilities
CFR	Code of Federal Regulations
CIU	Categorical Industrial User
COD	Chemical Oxygen Demand
EPA	United States Environmental Protection Agency
F	Fahrenheit
Gpd	Gallons per day
IU	Industrial User
Mg	Milligrams
mg/l	Milligrams per liter
NPDES	National Pollutant Discharge Elimination System
NSCIU	Non-Significant Categorical Industrial User
O&M	Operations and Maintenance
POTW	Publicly Owned Treatment Works
Ppd	Pounds per day
SIC	Standard Industrial Classification
SWDA	Solid Waste Disposal Act
RCRA	Resource Conservation and Recovery Act
SIU	Significant Industrial User
SNC	Significant Noncompliance
TSS	Total Suspended Solids
TTO	Total Toxic Organics
U.S.C.	United States Code
ug/l	Micrograms per liter
WYPDES	Wyoming Pollutant Discharge Elimination System
WRD	Water Reclamation Division
WRDM	Water Reclamation Division Manager

13.20.050 General discharge prohibitions.

A. No industrial user shall contribute or cause to be contributed, directly or indirectly, to the

POTW any pollutant or wastewater which will pass through or cause interference with the operation or performance of the POTW. These general prohibitions apply to all users of the POTW, whether or not they are subject to categorical pretreatment standards or requirements.

B. No industrial user shall contribute the following substances to the POTW:

1. Any substances which by reason of their nature or quantity may create a fire or explosion hazard or be injurious to the POTW or to the operation of the POTW, including, but not limited to, waste streams with a closed cup flashpoint of less than one hundred forty (140) degrees Fahrenheit or sixty (60) degrees Celsius using the test methods in 40 C.F.R. Section 261.21;

2. Any solid or viscous substances which may cause obstruction to sewer flow or other interference with the operation of the POTW such as, but not limited to, grease, garbage with particles greater than one-half inch in any dimension, or any material which can be disposed of as trash;

3. Petroleum oil, nonbiodegradable cutting oil, or products of mineral oil origin in amounts that will cause pass through or interference;

4. Any wastewater having a pH less than five or greater than eleven, or having any other corrosive property capable of causing damage or hazard to structures, equipment or personnel of the POTW;

5. Any substance which may cause a public nuisance, cause hazard to life or prevent entry into the sewers for maintenance and repair;

6. Heat in amounts which will inhibit biological activity in the POTW resulting in interference, but in no case heat in such quantities that the temperature at the POTW treatment plant exceeds forty (40) degrees Celsius (one hundred four (104) degrees Fahrenheit);

7. Any pollutant which results in the presence of toxic gases, vapors or fumes within the POTW in a quantity that may cause acute worker health and safety problems;

8. Any trucked or hauled pollutants, except at discharge points designated by the POTW;

9. Any pollutant, including oxygen demanding pollutants, released in a discharge at a flow rate and/or concentration (including any slug load) which may cause interference to the POTW;

10. Wastewater which imparts color which cannot be removed by the treatment process, such as, but not limited to, dye wastes and vegetable tanning solutions, which consequently imparts color to the treatment plant's effluent, thereby violating the city's WYPDES permit;

11. Wastewater containing any radioactive wastes or isotopes except in compliance with applicable state or federal regulations;

12. Storm water, surface water, ground water, artesian well water, roof runoff, subsurface

drainage, swimming pool drainage, condensate, deionized water, noncontact cooling water, and unpolluted wastewater, unless specifically authorized by the control authority;

13. Sludges, screenings, or other residues from the pretreatment of industrial wastes;

14. Wastewater causing, alone or in conjunction with other sources, the treatment plant's effluent to fail toxicity test;

15. Detergents, surface-active agents, or other substances which that might cause excessive foaming in the POTW;

16. Bulk, expired, outdated or concentrated prescription and non-prescription drugs.

C. Pollutants, substances, or wastewater prohibited by this section shall not be processed or stored in such a manner that they could be discharged to the POTW.

13.20.060 National categorical pretreatment standards.

Users must comply with the categorical pretreatment standards found at 40 CFR Chapter I, Subchapter N, Parts 405–471.

A. Where a categorical pretreatment standard is expressed only in terms of either the mass or the concentration of a pollutant in wastewater, the control authority may impose equivalent concentration or mass limits in accordance with paragraphs E. and F. of this section.

B. When the limits in a categorical pretreatment standard are expressed only in terms of mass of pollutant per unit of production, the control authority may convert the limits to equivalent limitations expressed either as mass of pollutant discharged per day or effluent concentration for purposes of calculating effluent limitations applicable to individual industrial users.

C. When wastewater subject to a categorical pretreatment standard is mixed with wastewater not regulated by the same standard, the control authority shall impose an alternate limit in accordance with 40 CFR 403.6 (e).

D. The control authority may convert the mass limits of the categorical pretreatment standards of 40 CFR Parts 414, 419, and 455 to concentration limits for purposes of calculating limitations applicable to individual industrial users. The conversion is at the discretion of the control authority.

E. Once included in its permit, the industrial user must comply with the equivalent limitations developed in this section in lieu of the promulgated categorical standards from which the equivalent limitations were derived.

F. Many categorical pretreatment standards specify one limit for calculating maximum daily discharge limitations and a second limit for calculating maximum monthly average, or four-day

average, limitations. Where such standards are being applied, the same production or flow figure shall be used in calculating both the average and the maximum equivalent limitation.

G. Any industrial user operating under a permit incorporating equivalent mass or concentration limits calculated from a production-based standard shall notify the control authority within two business days after the user has a reasonable basis to know that the production level will significantly change within the next calendar month. Any user not notifying the control authority of such anticipated change will be required to meet the mass or concentration limits in its permit that were based on the original estimate of the long term average production rate.

13.20.070 Local limits.

A. The control authority is authorized to establish local limits pursuant to 40 CFR 403.5 (c).

B. It shall be unlawful for any significant industrial user to discharge or cause to be discharged any waste or wastewater to the Crow Creek Water Reclamation facility or the Dry Creek Water Reclamation facility that exceeds the allocations established by the board. The total allocation applied through the industrial user permits shall not exceed the total maximum allowable industrial loads established by the control authority. Current limits are on file at the City Clerk's office located at 2101 O'Neil Avenue and at the administration office of the BOPU located at 2416 Snyder Avenue. Current Local Limits are also available on the City website at CheyenneCity.org.

C. The control authority may establish more stringent pollutant limits, additional site-specific pollutant limits, BMPs, or additional pretreatment requirements when, in the judgment of the control authority, such limitations are necessary to implement the provisions of this chapter.

13.20.080 Pretreatment facilities.

Users shall provide wastewater treatment as necessary to comply with this chapter and shall achieve compliance with all categorical pretreatment standards, local limits, and the prohibitions set out in Section 13.20.050 of this chapter within the time limitations specified by EPA, the state, or the control authority, whichever is more stringent. Any facilities necessary for compliance shall be provided, operated, and maintained at the user's expense. Detailed plans describing such facilities and operating procedures shall be submitted to the control authority for review, and shall be acceptable to the control authority before such facilities are constructed. The review of such plans and operating procedures shall in no way relieve the user from the responsibility of modifying such facilities as necessary to produce a discharge acceptable to BOPU under the provisions of this chapter.

13.20.090 Additional pretreatment measures.

A. Whenever deemed necessary, the control authority may require users to restrict their discharge during peak flow periods, designate that certain wastewater be discharged only into

specific sewers, relocate and/or consolidate points of discharge, separate sewage waste streams from industrial waste streams, and such other conditions as may be necessary to protect the POTW and determine the user's compliance with the requirements of this chapter.

B. The control authority may require any person discharging into the POTW to install and maintain, on their property and at their expense, a suitable storage and flow-control facility to ensure equalization of flow. An individual wastewater discharge permit may be issued solely for flow equalization.

C. Users with the potential to discharge flammable substances may be required to install and maintain an approved combustible gas detection meter.

13.20.100 Dilution.

No user shall ever increase the use of process water, or in any way attempt to dilute a discharge, as a partial or complete substitute for adequate treatment to achieve compliance with a discharge limitation unless expressly authorized by an applicable pretreatment standard or requirement. The control authority may impose mass limitations on users who are using dilution to meet applicable pretreatment standards or requirements, or in other cases when the imposition of mass limitations is appropriate.

13.20.110 Accidental discharge and slug control plans.

A. The control authority shall evaluate whether each SIU needs an accidental discharge/slug discharge control plan or other action to control slug discharges. The control authority may require any user to develop, submit for approval, and implement such a plan or take such other action that may be necessary to control slug discharges. Facilities necessary to implement these plans shall be provided and maintained at the owner's or industrial user's expense. Spill prevention plans, including the facilities and the operating procedures, shall be approved by the control authority before the construction of the facility.

B. An accidental discharge/slug discharge control plan shall address, at a minimum, the following:

1. Description of discharge practices, including non-routine batch discharges;
2. Description of stored chemicals;
3. Procedures for immediately notifying the control authority of any accidental or slug discharge, including any discharge that would violate general prohibitions of Section 13.20.050, as required by Section 13.20.460, of this chapter; and
4. Procedures to prevent adverse impact from any accidental or slug discharge. Such procedures include, but are not limited to, inspection and maintenance of storage areas, handling and transfer of materials, loading and unloading operations, control of plant site runoff, worker training, building of containment structures or equipment, measures for containing toxic organic

pollutants, including solvents, and/or measures and equipment for emergency response.

13.20.120 Notification.

A. In the case of any discharge in violation of this chapter or permit conditions, and in the case of any discharge that could cause problems to the POTW, including any slug discharge, as defined in Section 13.20.030 of this chapter, the industrial user shall immediately notify the POTW of the discharge by telephone. The notification shall include:

1. The date, time, location and duration of the discharge;
2. The type of waste, including estimated concentration and accurate volume; and
3. Any corrective actions taken by the user.

B. Within five days following such a discharge, the user shall submit a written report describing the cause of the discharge and the measures that will be taken by the user to prevent similar future discharges.

C. Such notification shall not relieve the user of any expense, loss, damage or other liability resulting from the discharge, nor shall such notification relieve the user of any fines, civil penalties or other liability which may be imposed under this chapter or other applicable state or federal law.

D. All industrial users shall promptly notify the POTW in advance of any substantial change in the volume or character of pollutants in their discharge, including the listed or characteristic hazardous wastes for which the industrial user has submitted initial notification under 40 C.F.R. Section 403.12 (p).

13.20.130 Employee training.

The industrial user shall permanently post a notice in a prominent place advising all employees to call the control authority in the event of a dangerous discharge for which notification is required. Employers shall advise all employees who may cause or be injured by such a discharge of the emergency notification procedure.

13.20.140 Records.

All records relating to compliance with pretreatment standards shall be available to the EPA, state or BOPU upon request. Records shall remain available for at least five years after collection. This period shall be extended during any litigation concerning compliance with federal, state and local laws and regulations or permits.

13.20.150 Analytical requirements.

All analyses, including sampling results submitted in support of any application, reports,

evidence or analysis required by any permit or order, shall be performed in accordance with the techniques prescribed in 40 C.F.R. part 136 and amendments thereto, or if 40 C.F.R. part 136 does not contain sampling or analytical techniques for the pollutant in question, in accordance with procedures approved by the EPA.

13.20.160 Confidential information.

Information and data on a user obtained from reports, surveys, wastewater discharge permit applications, individual wastewater discharge permits, general permits and monitoring programs, and from the control authority's inspection and sampling activities, shall be available to the public without restriction, unless the user specifically requests, and is able to demonstrate to the satisfaction of the control authority, that the release of such information would divulge information, processes, or methods of production entitled to protection as trade secrets under applicable state law. Any such request must be asserted at the time of submission of the information or data. When requested and demonstrated by the user furnishing a report that such information should be held confidential, the portions of a report which might disclose trade secrets or secret processes shall not be made available for inspection by the public, but shall be made available pursuant to a court order or subpoena, immediately upon request to governmental agencies for uses related to the NPDES program or pretreatment program, and in enforcement proceedings involving the person furnishing the report. Wastewater constituents and characteristics and other effluent data, as defined at 40 CFR part 2.302, shall not be recognized as confidential information and shall be available to the public without restriction.

13.20.170 Right of entry, inspection and sampling.

The control authority shall have the right to enter the premises of any user to determine whether the user is complying with all requirements of this chapter and any individual wastewater discharge permit, general permit, or order issued hereunder. Users shall allow the control authority ready access to all parts of the premises for the purposes of inspection, sampling, records examination and copying, and the performance of any additional duties.

A. Where a user has security measures in force which require proper identification and clearance before entry into its premises, the user shall make necessary arrangements with its security guards so that, upon presentation of suitable identification, the control authority shall be permitted to enter without delay for the purposes of performing specific responsibilities.

B. The control authority shall have the right to set up on the user's property, or require installation of, such devices as are necessary to conduct sampling and/or metering of the user's operations.

C. The control authority may require the user to install monitoring equipment as necessary. The facility's sampling and monitoring equipment shall be maintained at all times in a safe and proper operating condition by the user at its own expense. All devices used to measure wastewater flow and quality shall be calibrated as often as necessary to ensure its accuracy.

D. Any temporary or permanent obstruction to safe and easy access to the facility to be

inspected and/or sampled shall be promptly removed by the user at the written or verbal request of the control authority and shall not be replaced. The costs of clearing such access shall be borne by the user.

E. Unreasonable delays in allowing the control authority access to the user's premises shall be a violation of the provisions of this chapter.

13.20.180 Search warrants.

If the control authority has been refused access to a building, structure, or property, or any part thereof, and is able to demonstrate probable cause to believe that there may be a violation of this chapter, or that there is a need to protect the overall public health, safety and welfare of the community, the control authority may seek issuance of a search warrant from the appropriate court in the state of Wyoming.

Article 2. Administration: Wastewater Discharge Permits

13.20.190 Wastewater discharges.

It is unlawful to discharge without a wastewater contribution permit to the POTW any wastewater except as authorized by the control authority in accordance with the provisions of this chapter.

13.20.200 Wastewater analysis.

When requested by the control authority, a user must submit information on the nature and characteristics of its wastewater within thirty (30) days of the request. The control authority is authorized to prepare a form for this purpose and may periodically require users to update this information.

13.20.210 Individual wastewater discharge permit and general permit requirement.

A. No SIU shall discharge wastewater into the POTW without first obtaining an individual wastewater discharge permit or general permit from the control authority, except that a SIU who has filed a timely application pursuant to Section 13.20.220 of this chapter may continue to discharge for the time period specified therein.

B. The control authority may require other users to obtain individual wastewater discharge permits or general permits as necessary to carry out the purposes of this chapter.

C. Any violation of the terms and conditions of an individual wastewater discharge permit or general permit shall be deemed a violation of the provisions of this chapter and subjects the wastewater discharge permittee to enforcement remedies outlined in Article 6, Administrative Enforcement Remedies, of this chapter. Obtaining an individual wastewater discharge permit or general permit does not relieve a permittee of its obligation to comply with all federal and state

pretreatment standards or requirements or with any other requirements of federal, state, and local law.

13.20.220 Individual wastewater discharge and general permitting: Existing connections.

Any user required to obtain an individual wastewater discharge permit or general permit who was discharging wastewater into the POTW prior to the effective date of the ordinance from which this chapter is derived and who wishes to continue such discharges in the future, shall, within ninety (90) days after said effective date, apply to the control authority for an individual wastewater discharge permit or general permit, in accordance with Section 13.20.240 of this chapter, and shall not cause or allow discharges to the POTW to continue after thirty (30) days of the effective date except in accordance with an individual wastewater discharge permit or general permit issued by the control authority.

13.20.230 Individual wastewater discharge and general permitting: New connections.

Any user required to obtain an individual wastewater discharge permit or general permit who proposes to begin or recommence discharging into the POTW must obtain such permit prior to the beginning or recommencing of such discharge. An application for the individual wastewater discharge permit or general permit, in accordance with Section 13.20.240 of this chapter, must be filed at least ninety (90) days prior to the date upon which any discharge will begin or recommence.

13.20.240 Individual wastewater discharge and general permit application: Contents.

A. All users required to obtain an individual wastewater discharge permit or general permit must submit a permit application. Users that are eligible may request a general permit under Section 13.20.250 of this chapter. The control authority may require users to submit all or some of the following information as part of the permit application:

1. Identifying information:
 - a. The name and address of the facility, including the name of the operator and owner.
 - b. Contact information, description of activities, facilities, and plant production processes on the premises.
2. Environmental permits:
 - a. A list of any environmental control permits held by or for the facility.
3. Description of operations:

a. Brief description of the nature, average rate of production (including each product produced by type, amount, processes, and rate of production), and standard industrial classifications of the operation(s) carried out by such user. This description should include a schematic process diagram, which indicates points of discharge to the POTW from the regulated processes.

b. Types of wastes generated, and a list of all raw materials and chemicals used or stored at the facility which are, or could accidentally or intentionally be, discharged to the POTW.

c. Number and type of employees, hours of operation, and proposed or actual hours of operation.

d. Type and amount of raw materials processed (average and maximum per day).

e. Site plans, floor plans, mechanical and plumbing plans, and details to show all sewers, floor drains, and appurtenances by size, location, and elevation, and all points of discharge.

4. Time and duration of discharges.

5. The location for monitoring all wastes covered by the permit.

6. Flow measurement:

a. Information showing the measured average daily and maximum daily flow, in gallons per day, to the POTW from regulated process streams and other streams, as necessary, to allow use of the combined waste stream formula set out in 40 CFR 403.6 (e).

7. Measurement of pollutants:

a. The categorical pretreatment standards applicable to each regulated process and any new categorically regulated processes for existing sources.

b. The results of sampling and analysis identifying the nature and concentration, and/or mass, where required by the standard or by the control authority, of regulated pollutants in the discharge from each regulated process.

c. Instantaneous, daily maximum, and long-term average concentrations, or mass, where required, shall be reported.

d. The sample shall be representative of daily operations and shall be analyzed in accordance with procedures set out in Section 13.20.490 of this chapter. Where the standard requires compliance with a BMP or pollution prevention alternative, the user shall submit documentation as required by the control authority or the applicable standards to determine compliance with the standard.

e. Sampling must be performed in accordance with procedures set out in Section 13.20.500

of this chapter.

8. Any requests for a monitoring waiver (or a renewal of an approved monitoring waiver) for a pollutant neither present nor expected to be present in the discharge based on Section 13.20.440 B. of this chapter.

9. Any other information as may be deemed necessary by the control authority to evaluate the permit application.

B. Incomplete or inaccurate applications will not be processed and will be returned to the user for revision.

13.20.250 Wastewater discharge permitting: General permits.

A. At the discretion of the control authority, the control authority may use general permits to control SIU discharges to the POTW if the following conditions are met. All facilities to be covered by a general permit must:

1. Involve the same or substantially similar types of operations;
2. Discharge the same types of wastes;
3. Require the same effluent limitations;
4. Require the same or similar monitoring; and
5. In the opinion of the control authority, are more appropriately controlled under a general permit than under individual wastewater discharge permits.

B. To be covered by the general permit, the SIU must file a written request for coverage that identifies its contact information, production processes, the types of wastes generated, the location for monitoring all wastes covered by the general permit, any requests in accordance with Section 13.20.440 B. of this chapter for a monitoring waiver for a pollutant neither present nor expected to be present in the discharge, and any other information the POTW deems appropriate. A monitoring waiver for a pollutant neither present nor expected to be present in the discharge is not effective in the general permit until after the control authority has provided written notice to the SIU that such a waiver request has been granted in accordance with Section 13.20.440 B. of this chapter.

C. The control authority will retain a copy of the general permit, documentation to support the POTW's determination that a specific SIU meets the criteria in Section 13.20.250 A. 1. to 5. above and applicable state regulations, and a copy of the user's written request for coverage for three years after the expiration of the general permit.

D. The control authority may not control an SIU through a general permit where the facility is subject to production-based categorical pretreatment standards or categorical pretreatment

standards expressed as mass of pollutant discharged per day or for IUs whose limits are based on the combined waste stream formula or net/gross calculations described in Sections 13.20.060 C. and D. of this chapter.

13.20.260 Application signatories and certifications.

A. All wastewater discharge permit applications, user reports and certification statements must be signed by an authorized representative of the user and contain the applicable certification statement wording contained in Section 13.20.530 of this chapter.

B. If the designation of an authorized representative is no longer accurate because a different individual or position has responsibility for the overall operation of the facility or overall responsibility for environmental matters for the company, a new written authorization satisfying the requirements of this section must be submitted to the control authority prior to or together with any reports to be signed by an authorized representative.

C. A facility determined to be a non-significant categorical industrial user by the control authority, pursuant to Section 13.20.030 of this chapter, must annually submit the applicable signed certification statement referenced in Section A. above.

13.20.270 Individual wastewater discharge and general permit decisions.

The control authority will evaluate the data furnished by the user and may require additional information. Within thirty (30) days of receipt of a complete permit application, the control authority will determine whether to issue an individual wastewater discharge permit or a general permit. The control authority may deny any application for an individual wastewater discharge permit or general permit.

Article 3. Wastewater Contribution Permit Requirements

13.20.280 Individual wastewater discharge and general permit: Contents.

An individual wastewater discharge permit or general permit shall include such conditions as are deemed reasonably necessary by the control authority to prevent pass through or interference, protect the quality of the water body receiving the treatment plant's effluent, protect worker health and safety, facilitate sludge management and disposal, and protect against damage to the POTW.

A. Individual wastewater discharge permits and general permits must contain:

1. A statement that indicates the wastewater discharge permit issuance date, expiration date and effective date;

2. A statement that the wastewater discharge permit is nontransferable without prior notification to the BOPU in accordance with Section 13.20.340 of this chapter, and provisions for furnishing the new owner or operator with a copy of the existing wastewater discharge

permit;

3. Effluent limits, including BMPs, based on applicable pretreatment standards;

4. Self monitoring, sampling, reporting, notification, and record-keeping requirements. These requirements shall include an identification of pollutants (or BMP) to be monitored, sampling location, sampling frequency, and sample type based on federal, state, and local law.

5. The process for seeking a waiver from monitoring for a pollutant neither present nor expected to be present in the discharge in accordance with Section 13.20.440 B.

6. A statement of applicable civil and criminal penalties for violation of pretreatment standards and requirements, and any applicable compliance schedule. Such schedule may not extend the time for compliance beyond that required by applicable federals, state, or local law.

7. Requirements to control slug discharge, if determined by the control authority to be necessary.

8. Any grant of the monitoring waiver by the control authority pursuant to Section 13.20.440 B. must be included as a condition in the user's permit or other control mechanism.

B. Individual wastewater discharge permits or general permits may contain, but need not be limited to, the following conditions:

1. Limits on the average and/or maximum rate of discharge, time of discharge, and/or requirements for flow regulation and equalization;

2. Requirements for the installation of pretreatment technology, pollution control, or construction of appropriate containment devices, designed to reduce, eliminate, or prevent the introduction of pollutants into the treatment works;

3. Requirements for the development and implementation of spill control plans or other special conditions including management practices necessary to adequately prevent accidental, unanticipated, or non-routine discharges;

4. Development and implementation of waste minimization plans to reduce the amount of pollutants discharged to the POTW;

5. The unit charge or schedule of user charges and fees for the management of the wastewater discharged to the POTW;

6. Requirements for installation and maintenance of inspection and sampling facilities and equipment, including flow measurement devices;

7. A statement that compliance with the individual wastewater discharge permit or general permit does not relieve the permittee of responsibility for compliance with all applicable federal

and state pretreatment standards, including those which become effective during the term of the individual wastewater discharge permit; and

8. Other conditions as deemed appropriate by the control authority to ensure compliance with federal and state laws, statutes, and local regulations and ordinances.

13.20.290 Individual wastewater discharge and general permit: Duration.

An individual wastewater discharge permit or general permit shall be issued for a specified time period, not to exceed five years from the effective date of the permit. An individual wastewater discharge permit or general permit may be issued for a period less than five years, at the discretion of the control authority. Each individual wastewater discharge permit or general permit will indicate a specific date upon which it will expire. The user shall apply for permit reissuance at least one hundred eighty (180) days prior to the expiration of the user's existing permit.

13.20.300 Permit modifications.

A. The control authority may modify an individual wastewater discharge permit or general permit for good cause, including, but not limited to, the following reasons:

1. To incorporate any new or revised federal, state, or local pretreatment standards or requirements;
2. To address significant alterations or additions to the user's operation, processes, or wastewater volume or character since the time of the individual wastewater discharge permit issuance;
3. A change in the POTW that requires either a temporary or permanent reduction or elimination of the authorized discharge;
4. Information indicating that the permitted discharge poses a threat to the POTW, personnel, biosolids use or the receiving waters;
5. Violation of any terms or conditions of the individual wastewater discharge permit;
6. Misrepresentations or failure to fully disclose all relevant facts in the wastewater discharge permit application or in any required reporting;
7. Revision of or a grant of variance from categorical pretreatment standards pursuant to 40 CFR part 403.13;
8. To correct typographical or other errors in the individual wastewater discharge permit; or
9. To reflect a transfer of the facility ownership or operation to a new owner or operator where requested in accordance with Section 13.20.340.

13.20.310 Permit appeals.

A. The control authority shall provide interested persons with notice of initial decisions regarding permit issuance and conditions. Interested persons may petition the BOPU to appeal the terms of the permit within thirty (30) days of the notice. The following rules shall apply to appeals under this section:

1. Failure to submit a timely petition for review is a waiver of the right to appeal.
2. The appealing party must indicate which permit provisions are objected to, the reasons for objection and any alternative permit conditions sought.
3. Conditions of the permit shall not be stayed pending appeal. After considering the petition and arguments, if the control authority determines that the appeal merits relief, the permit shall be amended as required.
4. The BOPU's decision not to consider an appeal is final action for purposes of judicial review.
5. Aggrieved parties seeking judicial review of the final control authority action must do so in accordance with the Wyoming Administrative Procedure Act.

13.20.320 Continuation of expired permits.

A. An expired permit will continue to be effective and enforceable until a permit is reissued if:

1. The industrial user submitted a complete permit application at least one hundred eighty (180) days prior to the expiration date of the existing permit; and
2. The failure to reissue a permit prior to expiration of the previous permit was not due to any act or omission attributable to the industrial user.

13.20.330 Special agreements.

Nothing in this chapter shall be construed as preventing a special agreement between the POTW and a user whereby wastewater of unusual strength or character is accepted to the POTW. No discharges violating pretreatment standards are allowed by special agreements.

13.20.340 Individual wastewater discharge and general permit: Transfer.

A. Individual wastewater discharge permits or general permits may be transferred to a new owner or operator only if the permittee gives at least ninety (90) days advance notice to the control authority and the control authority approves the individual wastewater discharge permit or general permit transfer. The notice to the control authority must include a written certification

by the new owner or operator which:

1. States that the new owner and/or operator has no immediate intent to change the facility's operations and processes;
2. Identifies the specific date on which the transfer is to occur; and
3. Acknowledges full responsibility for complying with the existing individual wastewater discharge permit.

B. Failure to provide advance notice of a transfer renders the individual wastewater discharge permit or general permit void as of the date of facility transfer.

13.20.350 Individual wastewater discharge permit and general permit: Revocation.

A. The control authority may revoke an individual wastewater discharge permit or general permit for good cause, including, but not limited to, the following reasons:

1. Failure to notify the control authority of significant changes to the wastewater prior to the changed discharge;
2. Failure to provide prior notification to the control authority of changed conditions pursuant to Section 13.20.450 of this chapter;
3. Misrepresentation or failure to fully disclose all relevant facts in the wastewater discharge permit application;
4. Falsifying self-monitoring reports and certification statements;
5. Tampering with monitoring equipment;
6. Refusing to allow the control authority or its duly authorized representative timely access to the facility premises and records;
7. Failure to meet effluent limitations;
8. Failure to pay fines;
9. Failure to pay sewer charges;
10. Failure to meet compliance schedules;
11. Failure to complete a wastewater survey or the wastewater discharge permit application;
12. Failure to provide advance notice of the transfer of business ownership of a permitted facility; or

13. Violation of any pretreatment standard or requirement, or any terms of the wastewater discharge permit or this chapter.

B. Individual wastewater discharge permits or general permits shall be voidable upon cessation of operations or transfer of business ownership. All individual wastewater discharge permits or general permits issued to a user are void upon the issuance of a new individual wastewater discharge permit or general permit to that user.

13.20.360 Individual wastewater discharge permit and general permit: Reissuance.

A user with an expiring individual wastewater discharge permit or general permit shall apply for individual wastewater discharge permit or general permit reissuance by submitting a complete permit application, in accordance with Section 13.20.240 of this chapter, a minimum of ninety (90) days prior to the expiration of the user's existing individual wastewater discharge permit or general permit.

13.20.370 Monitoring.

A. Users shall provide and maintain in a safe and proper condition, at their own expense, facilities to allow the authorized representatives of the control authority, EPA or the state to inspect, sample or measure flows from wastewater subject to this chapter.

B. There shall be ample room in or near facilities to allow accurate sampling and preparation of samples for analysis.

C. If locating such facilities on a user's property is impractical, the user may apply to the control authority for a right-of-way or for permission to construct on public property.

13.20.380 Bypass.

A. Bypass not violating applicable pretreatment standards or requirements.

1. An industrial user may allow any bypass to occur which does not cause pretreatment standards or requirements to be violated, but only if the bypass is necessary for essential maintenance to assure efficient operation. These bypasses are not subject to subsections B and C of this section.

B. Notice.

1. If an industrial user knows in advance of the need for a bypass, it shall submit prior notice to the control authority, if possible at least ten (10) days before the date of the bypass.

2. An industrial user shall orally notify the control authority of an unanticipated bypass that exceeds applicable pretreatment standards or requirements within twenty-four (24) hours of becoming aware of the bypass. A written submission shall also be provided within five days of

becoming aware of the bypass. The written submission shall contain a description of the bypass and its cause; the duration of the bypass, including exact times and dates, and if the bypass has not been corrected, the time it is expected to continue; and steps taken or planned to reduce, eliminate and prevent recurrence of the bypass. The control authority may waive the written report on a case by case basis if the oral report has been received within twenty-four (24) hours.

C. Prohibition of bypass.

1. Bypass is prohibited and the control authority may take enforcement action against an individual user for a bypass, unless:

a. Bypass was unavoidable to prevent loss of life, personal injury or severe property damage;

b. There are no feasible alternatives to bypass, such as use of auxiliary treatment facilities, retention of wastes or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate backup equipment should have been installed in the exercise of reasonable engineering judgment to prevent bypass which occurred during normal periods of equipment downtime or preventative maintenance; and

c. The industrial user submitted notices as required by subsection B. of this section.

2. The control authority may approve an anticipated bypass, after considering its adverse effects, if the control authority determines that it will meet the three conditions listed in subsection C. 1. of this section.

13.20.390 Upset provisions.

A. Definition.

1. For the purposes of this section, "upset" means an exceptional incident in which there is unintentional and temporary noncompliance with pretreatment standards because of factors beyond the reasonable control of the industrial user. An upset does not include noncompliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventive maintenance, or careless or improper operation.

B. Effect of an upset.

1. An upset shall constitute an affirmative defense to an action brought for noncompliance with pretreatment standards if the requirements of subsection C. of this section are met.

C. Conditions necessary for a demonstration of upset.

1. An industrial user who wishes to establish the affirmative defense of upset shall demonstrate, through properly signed, contemporaneous operating logs, or other relevant evidence, that:

- a. An upset occurred and the industrial user can identify the cause(s) of the upset;
- b. The facility was at the time being operated in a prudent and workmanlike manner and in compliance with applicable O&M procedures; and
- c. The industrial user has submitted the following information to the control authority within twenty-four (24) hours of becoming aware of the upset (if this information is provided orally, a written submission must be provided within five days):
 - i. A description of the discharge and cause of noncompliance;
 - ii. The period of noncompliance, including exact dates and times or, if not corrected, the anticipated time the noncompliance is expected to continue; and
 - iii. Steps being taken and/or planned to reduce, eliminate and prevent recurrence of the noncompliance.

D. Burden of proof.

1. In an enforcement proceeding the industrial user seeking to establish the occurrence of an upset shall have the burden of proof.

E. Reviewability of agency consideration of claims of upset.

1. In the usual exercise of prosecutorial discretion, agency enforcement personnel should review any claims that non-compliance was caused by an upset. No determinations made in the course of the review constitute final agency action subject to judicial review. Industrial users will have the opportunity for a judicial determination on any claim of upset only in an enforcement action as defined in the BOPU Enforcement Response Plan brought for noncompliance with categorical pretreatment standards.

F. User responsibility in case of upset.

1. The industrial user shall control production of all discharges to the extent necessary to maintain compliance with pretreatment standards upon reduction, loss or failure of its treatment facility until the facility is restored or an alternative method of treatment is provided. This requirement applies in the situation where, among other things, the primary source of power of the treatment facility is reduced, lost or fails.

13.20.400 Regulation of wastewater received from other jurisdictions.

- A. If another municipality, or user located within another municipality, contributes wastewater to the POTW, the control authority shall enter into an intermunicipal agreement with the contributing municipality.

B. Prior to entering into an agreement required by subsection A. above, the control authority shall request the following information from the contributing municipality:

1. A description of the quality and volume of wastewater discharged to the POTW by the contributing municipality;
2. An inventory of all users located within the contributing municipality that are discharging to the POTW; and
3. Such other information as the control authority may deem necessary.

C. An intermunicipal agreement, as required by subsection A. above, shall contain the following conditions:

1. A requirement for the contributing municipality to adopt a sewer use ordinance which is at least as stringent as the provisions of this chapter, as amended, and local limits, including required Baseline Monitoring Reports (BMRs) which are at least as stringent as those set out in Section 13.20.070 of this chapter. The requirement shall specify that such ordinance and limits must be revised as necessary to reflect changes made to this chapter or local limits;

2. A requirement for the contributing municipality to submit a revised user inventory on at least an annual basis;

3. A provision specifying which pretreatment implementation activities, including individual wastewater discharge permit or general permit issuance, inspection and sampling, and enforcement, will be conducted by the contributing municipality; which of these activities will be conducted by the control authority; and which of these activities will be conducted jointly by the contributing municipality and the control authority;

4. A requirement for the contributing municipality to provide the control authority with access to all information that the contributing municipality obtains as part of its pretreatment activities;

5. Limits on the nature, quality, and volume of the contributing municipality's wastewater at the point where it discharges to the POTW;

6. Requirements for monitoring the contributing municipality's discharge;

7. A provision ensuring the control authority access to the facilities of users located within the contributing municipality's jurisdictional boundaries for the purpose of inspection, sampling, and any other duties deemed necessary by the control authority; and

8. A provision specifying remedies available for breach of the terms of the intermunicipal agreement.

Article 4. Reporting

13.20.410 Baseline monitoring report (categorical dischargers only).

A. Within either one hundred eighty (180) days after the effective date of a categorical pretreatment standard, or the final administrative decision on a category determination under 40 CFR 403.6(a)(4), whichever is later, existing categorical industrial users currently discharging to or scheduled to discharge to the POTW shall submit to the control authority a report which contains the information listed in Section B. below. At least ninety (90) days prior to commencement of their discharge, new sources, and sources that become categorical industrial users subsequent to the promulgation of an applicable categorical standard, shall submit to the control authority a report which contains the information listed in Section B. below. A new source shall report the method of pretreatment it intends to use to meet applicable categorical standards. A new source also shall give estimates of its anticipated flow and quantity of pollutants to be discharged.

B. Users described above shall submit the information set forth below.

1. All information required in Section 13.20.240 subsections A.1.a.; A.2.; A.3.a., and A.6.

2. Measurement of pollutants.

a. The user shall provide the information required in Section 13.20.240 subsections A.7.a. through d.

b. The user shall take a minimum of one representative sample to compile that data necessary to comply with the requirements of this section.

c. Samples should be taken immediately downstream from pretreatment facilities if such exist or immediately downstream from the regulated process if no pretreatment exists. If other wastewaters are mixed with the regulated wastewater prior to pretreatment the user should measure the flows and concentrations necessary to allow use of the combined wastestream formula in 40 CFR 403.6(e) to evaluate compliance with the pretreatment standards. Where an alternate concentration or mass limit has been calculated in accordance with 40 CFR 403.6(e) this adjusted limit along with supporting data shall be submitted to the control authority;

d. Sampling and analysis shall be performed in accordance with Section 13.20.500;

e. The control authority may allow the submission of a baseline report which utilizes only historical data so long as the data provides information sufficient to determine the need for industrial pretreatment measures;

f. The baseline report shall indicate the time, date and place of sampling and methods of analysis, and shall certify that such sampling and analysis is representative of normal work cycles and expected pollutant discharges to the POTW.

3. Compliance certification.

a. A statement, reviewed and certified by the user's authorized representative as defined in Section 13.20.030 indicating whether pretreatment standards are being met on a consistent basis, and, if not, whether additional operation and maintenance (O&M) and/or additional pretreatment is required to meet the Pretreatment Standards and Requirements.

4. Compliance schedule.

a. If additional pretreatment and/or O&M will be required to meet the pretreatment standards, the shortest schedule by which the user will provide such additional pretreatment and/or O&M must be provided. The completion date in this schedule shall not be later than the compliance date established for the applicable pretreatment standard. A compliance schedule pursuant to this section must meet the requirements set out in Section 13.20.420 of this chapter.

5. Signature and report certification.

a. All baseline monitoring reports must be certified in accordance with Section 13.20.530 A. of this chapter and signed by an authorized representative as defined in Section 13.20.030.

13.20.420 Compliance schedule progress report.

A. The following conditions shall apply to the compliance schedule required by Section 13.20.410 B. 4. of this chapter:

1. The schedule shall contain progress increments in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment required for the user to meet the applicable pretreatment standards (such events include, but are not limited to, hiring an engineer, completing preliminary and final plans, executing contracts for major components, commencing and completing construction, and beginning and conducting routine operation);

2. No increment referred to above shall exceed nine months unless extended by the control authority;

3. The user shall submit a progress report to the control authority no later than fourteen (14) days following each date in the schedule and the final date of compliance including, as a minimum, whether or not it complied with the increment of progress, the reason for any delay, and, if appropriate, the steps being taken by the user to return to the established schedule; and

4. In no event shall more than nine months elapse between such progress reports to the control authority.

13.20.430 Reports on compliance with categorical pretreatment standard deadline.

Within ninety (90) days following the date for final compliance with applicable categorical

pretreatment standards, or in the case of a new source following commencement of the introduction of wastewater into the POTW, any user subject to such pretreatment standards and requirements shall submit to the control authority a report containing the information described in Section 13.20.240 A. 6. and 7. and 13.20.410 B. 2. of this chapter. For users subject to equivalent mass or concentration limits established in accordance with the procedures in Section 13.20.060, this report shall contain a reasonable measure of the user's long-term production rate. For all other users subject to categorical pretreatment standards expressed in terms of allowable pollutant discharge per unit of production (or other measure of operation), this report shall include the user's actual production during the appropriate sampling period. All compliance reports must be signed and certified in accordance with Section 13.20.530 A. of this chapter. All sampling will be done in conformance with Section 13.20.500.

13.20.440 Periodic compliance report.

A. Except as specified in Subsection C. of this section, all significant industrial users must, at a frequency determined by the control authority, submit no less than twice per year (June and December or on dates specified) reports indicating the nature, concentration of pollutants in the discharge which are limited by pretreatment standards and the measured or estimated average and maximum daily flows for the reporting period. In cases where the pretreatment standard requires compliance with a BMP or pollution prevention alternative, the user must submit documentation required by the control authority or the pretreatment standard necessary to determine the compliance status of the user.

B. The control authority may authorize an industrial user subject to a categorical pretreatment standard to forego sampling of a pollutant regulated by a categorical pretreatment standard if the industrial user has demonstrated through sampling and other technical factors that the pollutant is neither present nor expected to be present in the discharge, or is present only at background levels from intake water and without any increase in the pollutant due to activities of the industrial user. This authorization is subject to the following conditions:

1. The waiver may be authorized where a pollutant is determined to be present solely due to sanitary wastewater discharged from the facility provided that the sanitary wastewater is not regulated by an applicable categorical standard and otherwise includes no process wastewater.

2. The monitoring waiver is valid only for the duration of the effective period of the individual wastewater discharge permit, but in no case longer than five years. The user must submit a new request for the waiver before the waiver can be granted for each subsequent individual wastewater discharge permit or general permit. See Section 13.20.240.

3. In making a demonstration that a pollutant is not present, the industrial user must provide data from at least one sampling of the facility's process wastewater prior to any treatment present at the facility that is representative of all wastewater from all processes.

4. The request for a monitoring waiver must be signed by an authorized representative as defined in Section 13.20.030, and include the certification statement in Section 13.20.530.

5. Non-detectable sample results may be used only as a demonstration that a pollutant is not present if the EPA approved method from 40 CFR Part 136 with the lowest minimum detection level for that pollutant was used in the analysis.

6. Any grant of the monitoring waiver by the control authority must be included as a condition in the user's permit. The reasons supporting the waiver and any information submitted by the user in its request for the waiver must be maintained by the control authority for three years after expiration of the waiver.

7. Upon approval of the monitoring waiver and revision of the user's permit by the control authority, the industrial user must certify on each report with the statement in Section 13.20.530 B. that there has been no increase in the pollutant in its wastestream due to activities of the industrial user.

8. In the event that a waived pollutant is found to be present or is expected to be present because of changes that occur in the user's operations, the user must immediately comply with the monitoring requirements of Section 13.20.440 A., or other more frequent monitoring requirements imposed by the control authority, and notify the control authority.

9. This provision does not supersede certification processes and requirements established in categorical pretreatment standards, except as otherwise specified in the categorical pretreatment standard.

C. The control authority may reduce the requirement for periodic compliance reports to a requirement to report no less frequently than once a year, unless required more frequently in the pretreatment standard or by the EPA, where the industrial user's total categorical wastewater flow does not exceed any of the following:

1. Six hundred fifty (650) gallons per day as measured by a continuous effluent flow monitoring device unless the industrial user discharges in batches;

2. 0.01 percent of the maximum allowable headworks loading of the design dry-weather *organic treatment capacity* of the POTW; and

3. 0.01 percent of the maximum allowable headworks loading for any pollutant regulated by the applicable categorical pretreatment standard for which approved local limits were developed in accordance with Section 13.20.070 of this chapter.

Reduced reporting is not available to industrial users that have in the last two years been in significant noncompliance, as defined in Section 13.20.550 of this chapter. In addition, reduced reporting is not available to an industrial user with daily flow rates, production levels, or pollutant levels that vary so significantly that, in the opinion of the control authority, decreasing the reporting requirement for this industrial user would result in data that are not representative of conditions occurring during the reporting period.

D. All periodic compliance reports must be signed and certified in accordance with Section

13.20.530 A. of this chapter.

E. All wastewater samples must be representative of the user's discharge. Wastewater monitoring and flow measurement facilities shall be properly operated, kept clean, and maintained in good working order at all times. The failure of a user to keep its monitoring facility in good working order shall not be grounds for the user to claim that sample results are unrepresentative of its discharge.

F. If a user subject to the reporting requirement in this section monitors any regulated pollutant at the appropriate sampling location more frequently than required by the water reclamation division manager, using the procedures prescribed in Section 13.20.500 of this chapter, the results of this monitoring shall be included in the report.

G. Users that send electronic (digital) documents to the water reclamation division to satisfy the requirements of this section must meet the requirements of the control authority.

13.20.450 Reports of changed conditions.

A. Each user must notify the control authority of any significant changes to the user's operations or system which might alter the nature, quality, or volume of its wastewater at least ninety (90) days before the change.

1. The control authority may require the user to submit such information as may be deemed necessary to evaluate the changed condition, including the submission of a wastewater discharge permit application under Section 13.20.240 of this chapter.

2. The control authority may issue an individual wastewater discharge permit or general permit under Section 13.20.360 of this chapter or modify an existing wastewater discharge permit under Section 13.20.300 of this chapter in response to changed conditions or anticipated changed conditions.

13.20.460 Reports of potential problems.

A. In the case of any discharge, including, but not limited to, accidental discharges, discharges of a nonroutine, episodic nature, a noncustomary batch discharge, a slug discharge or slug load, that might cause potential problems for the POTW, the user shall immediately telephone and notify the control authority of the incident. This notification shall include the location of the discharge, type of waste, concentration and volume, if known, and corrective actions taken by the user.

B. Within five days following such discharge, the user shall, unless waived by the control authority, submit a detailed written report describing the cause(s) of the discharge and the measures to be taken by the user to prevent similar future occurrences. Such notification shall not relieve the user of any expense, loss, damage, or other liability which might be incurred as a result of damage to the POTW, natural resources, or any other damage to person or property; nor shall such notification relieve the user of any fines, penalties, or other liability which may be

imposed pursuant to the provisions of this chapter.

C. A notice shall be permanently posted on the user's bulletin board or other prominent place advising employees who to call in the event of a discharge described in Section A. above. Employers shall ensure that all employees, who could cause such a discharge to occur, are advised of the emergency notification procedure.

D. Significant industrial users are required to notify the control authority immediately of any changes at its facility affecting the potential for a slug discharge.

13.20.470 Notice of violation; Repeat sampling and reporting.

If sampling performed by a user indicates a violation, the user must notify the control authority within twenty-four (24) hours of becoming aware of the violation. The user shall also repeat the sampling and analysis and submit the results of the repeat analysis to the control authority within thirty (30) days after becoming aware of the violation.

13.20.480 Notification of the discharge of hazardous waste.

A. Any user who commences the discharge of hazardous waste shall notify the POTW, the EPA regional waste management division director, and state hazardous waste authorities, in writing, of any discharge into the POTW of a substance which, if otherwise disposed of, would be a hazardous waste under 40 CFR Part 261. Such notification must include the name of the hazardous waste as set forth in 40 CFR Part 261, the EPA hazardous waste number, and the type of discharge (continuous, batch, or other). If the user discharges more than one hundred (100) kilograms of such waste per calendar month to the POTW, the notification also shall contain the following information to the extent such information is known and readily available to the user:

1. An identification of the hazardous constituents contained in the wastes,
2. An estimation of the mass and concentration of such constituents in the wastestream discharged during that calendar month, and
3. An estimation of the mass of constituents in the wastestream expected to be discharged during the following twelve (12) months.

All notifications must take place no later than one hundred and eighty (180) days after the discharge commences. Any notification under this section need be submitted only once for each hazardous waste discharged. However, notifications of changed conditions must be submitted under Section 13.20.450 of this chapter. The notification requirement in this section does not apply to pollutants already reported by users subject to categorical pretreatment standards under the self-monitoring requirements of Sections 13.20.410, 13.20.430 and 13.20.440 of this chapter.

B. Dischargers are exempt from the requirements of Section A. above during a calendar month in which they discharge no more than fifteen (15) kilograms of hazardous wastes, unless the wastes are acute hazardous wastes as specified in 40 CFR 261.30(d) and 261.33(e).

Discharge of more than fifteen (15) kilograms of nonacute hazardous wastes in a calendar month, or of any quantity of acute hazardous wastes as specified in 40 CFR 261.30(d) and 261.33(e) requires a one-time notification. Subsequent months during which the user discharges more than such quantities of any hazardous waste do not require additional notification.

C. In the case of any new regulations under Section 3001 of RCRA identifying additional characteristics of hazardous waste or listing any additional substance as a hazardous waste, the user must notify the control authority, the EPA regional waste management waste division director, and state hazardous waste authorities of the discharge of such substance within ninety (90) days of the effective date of such regulations.

D. In the case of any notification made under this section, the user shall certify that it has a program in place to reduce the volume and toxicity of hazardous wastes generated to the degree it has determined to be economically practical.

E. This provision does not create a right to discharge any substance not otherwise permitted to be discharged by this chapter, a permit issued thereunder, or any applicable federal or state law.

13.20.490 Analytical requirements.

All pollutant analyses, including sampling techniques, to be submitted as part of a wastewater discharge permit application or report shall be performed in accordance with the techniques prescribed in 40 CFR Part 136 and amendments thereto, unless otherwise specified in an applicable categorical pretreatment standard. If 40 CFR Part 136 does not contain sampling or analytical techniques for the pollutant in question, or where the EPA determines that the Part 136 sampling and analytical techniques are inappropriate for the pollutant in question, sampling and analyses shall be performed by using validated analytical methods or any other applicable sampling and analytical procedures, including procedures suggested by the control authority or other parties approved by EPA.

13.20.500 Sample collection.

A. Samples collected to satisfy reporting requirements must be based on data obtained through appropriate sampling and analysis performed during the period covered by the report, based on data that is representative of conditions occurring during the reporting period.

1. Except as indicated in subsections 2. and 3. below, the user must collect wastewater samples using 24-hour flow-proportional composite sampling techniques, unless time-proportional composite sampling or grab sampling is authorized by the control authority. Where time-proportional composite sampling or grab sampling is authorized by the control authority, the samples must be representative of the discharge. Using protocols (including appropriate preservation) specified in 40 CFR Part 136 and appropriate EPA guidance, multiple grab samples collected during a twenty-four (24) hour period may be composited prior to the analysis as follows: For cyanide, total phenols, and sulfides the samples may be composited in the laboratory or in the field; for volatile organics and oil and grease, the samples may be

composited in the laboratory. Composite samples for other parameters unaffected by the compositing procedures as documented in approved EPA methodologies may be authorized by the control authority, as appropriate. In addition, grab samples may be required to show compliance with instantaneous limits.

2. Samples for oil and grease, temperature, pH, cyanide, total phenols, sulfides, and volatile organic compounds must be obtained using grab collection techniques.

3. For sampling required in support of baseline monitoring and ninety (90) day compliance reports required in Sections 13.20.410 and 13.20.420, a minimum of four grab samples must be used for pH, cyanide, total phenols, oil and grease, sulfide and volatile organic compounds for facilities for which historical sampling data do not exist; for facilities for which historical sampling data are available, the control authority may authorize a lower minimum. For the reports required by Section 13.20.440, the industrial user is required to collect the number of grab samples necessary to assess and assure compliance by with applicable pretreatment standards and requirements.

13.20.510 Date of receipt of reports.

Written reports will be deemed to have been submitted on the date postmarked. For reports which are not mailed, postage prepaid, into a mail facility serviced by the United States Postal Service, the date of receipt of the report shall govern.

13.20.520 Record keeping.

Users subject to the reporting requirements of this chapter shall retain, and make available for inspection and copying, all records of information obtained pursuant to any monitoring activities required by this chapter, any additional records of information obtained pursuant to monitoring activities undertaken by the user independent of such requirements, and documentation associated with BMPs established under Section 13.20.070. Records shall include the date, exact place, method, and time of sampling, and the name of the person(s) taking the samples; the dates analyses were performed; who performed the analyses; the analytical techniques or methods used; and the results of such analyses. These records shall remain available for a period of at least three years. This period shall be automatically extended for the duration of any litigation concerning the user or the BOPU, or where the user has been specifically notified of a longer retention period by the control authority.

13.20.530 Certification statements.

A. Certification of permit applications, user reports and initial monitoring waiver.

1. The following certification statement is required to be signed and submitted by users submitting permit applications in accordance with Section 13.20.260; users submitting baseline monitoring reports under Section 13.20.410 B. 5.; users submitting reports on compliance with the categorical pretreatment standard deadlines under Section 13.20.430; users submitting periodic compliance reports required by Section 13.20.440 A. through D., and users submitting

an initial request to forego sampling of a pollutant on the basis of Section 13.20.440 B. 4. The following certification statement must be signed by an authorized representative as defined in Section 13.20.030:

I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations.

B. Certification of pollutants not present.

1. Users that have an approved monitoring waiver based on Section 13.20.440 B. must certify on each report with the following statement that there has been no increase in the pollutant in its wastestream due to activities of the user.

Based on my inquiry of the person or persons directly responsible for managing compliance with the pretreatment standard for 40 CFR _____ [specify applicable National Pretreatment Standard part(s)], I certify that, to the best of my knowledge and belief, there has been no increase in the level of _____ [list pollutant(s)] in the wastewaters due to the activities at the facility since filing of the last periodic report under Section 13.20.440 A.

13.20.540 Reports from unpermitted users.

All users not required to obtain an individual wastewater discharge permit or general permit shall provide appropriate reports to the control authority as the control authority may require.

13.20.550 Publication of users in significant noncompliance.

A. The control authority shall publish annually, in a newspaper of general circulation that provides meaningful public notice within the jurisdictions served by the POTW, a list of the users which, at any time during the previous twelve (12) months, were in significant noncompliance with applicable pretreatment standards and requirements. The term "significant noncompliance" shall be applicable to all significant industrial users (or any other industrial user that violates subsections 3., 4. or 8. below and shall mean:

1. Chronic violations of wastewater discharge limits, defined here as those in which sixty-six percent (66%) or more of all the measurements taken for the same pollutant parameter taken during a six month period exceed (by any magnitude) a numeric pretreatment standard or requirement, including instantaneous limits as defined in Article 1. of this chapter;

2. Technical Review Criteria (TRC) violations, defined here as those in which thirty-three percent (33%) or more of wastewater measurements taken for each pollutant parameter during a six month period equals or exceeds the product of the numeric pretreatment standard or

requirement including instantaneous limits, as defined by Section 13.20.030 multiplied by the applicable criteria (1.4 for BOD, TSS, fats, oils and grease, and 1.2 for all other pollutants except pH);

3. Any other violation of a pretreatment standard or requirement as defined by Section 13.20.030 (daily maximum, long-term average, instantaneous limit, or narrative standard) that the control authority determines has caused, alone or in combination with other discharges, interference or pass through, including endangering the health of POTW personnel or the general public;

4. Any discharge of a pollutant that has caused imminent endangerment to the public or to the environment, or has resulted in the control authority's exercise of its emergency authority to halt or prevent such a discharge;

5. Failure to meet, within ninety (90) days of the scheduled date, a compliance schedule milestone contained in an individual wastewater discharge permit or enforcement order for starting construction, completing construction, or attaining final compliance;

6. Failure to provide within forty-five (45) days after the due date, any required reports, including baseline monitoring reports, reports on compliance with categorical pretreatment standard deadlines, periodic self-monitoring reports, and reports on compliance with compliance schedules;

7. Failure to accurately report noncompliance; or

8. Any other violation(s), which may include a violation of BMP, which the control authority determines will adversely affect the operation or implementation of the local pretreatment program.

Article 5. Wastewater Fees

13.20.560 User's fees.

It is declared necessary for the protection of the public health, safety and welfare, and necessary for the effectiveness of the BOPU, to collect fees from anyone who contributes wastewater to the city's treatment works. The proceeds of these charges shall be used for the operation, maintenance, and other related costs of the wastewater treatment systems as determined by the BOPU.

13.20.570 Definitions.

For the purposes of Article 5. of this chapter, the following definitions shall apply:

"Flow measurement device" means an instrument or apparatus for measuring the quantity of water or wastewater.

"Operation and maintenance" means all expenditures made during the useful life of the treatment works for materials, labor, administration and other items which are necessary for managing, operating and maintaining the treatment works. The term "operation and maintenance" includes the costs of replacing equipment, accessories, and appurtenances of treatment works.

"Wastewater treatment systems" means any system for the storage, treatment, recycling and reclamation of municipal sewage, domestic sewage or liquid industrial wastes, and the devices which comprise system. Treatment works include intercepting sewers, outfall sewers, sewage collection systems, individual systems, pumping, power and other equipment and their appurtenances; extensions, improvements, remodeling, additions and alterations; elements essential to provide a reliable recycled supply of water such as standby treatment units and clear well facilities; any works or land that will be used for ultimate disposal of residues resulting from such treatment; or any other system for preventing, abating, reducing, storing, treating, separating or disposing of municipal or industrial waste, including waste in combined stormwater and sanitary sewer systems.

"Useful life" means the estimated period during which a treatment works will be operated.

"User". A user is defined as anyone who contributes wastewater to the treatment works, including all domestic and non-domestic sources.

13.20.580 Fees.

A. The POTW may adopt charges and fees which may include:

1. Fees for reimbursement of costs of setting up and operating the POTW's pretreatment program;
2. Fees for monitoring, inspection and surveillance procedures including the cost of reviewing monitoring reports submitted by the industrial user;
3. Fees for reviewing accidental discharge procedures and construction;
4. Fees for permit applications including the cost of processing such applications;
5. Fees for filing appeals; and
6. Other fees as the POTW may deem necessary to carry out the requirements contained herein.
7. Fees for commercial users contributing wastewater with strength in excess of concentrations established in Section 13.20.590.

B. These fees relate solely to the matters covered by this chapter and are separate from all other fees chargeable by the POTW.

13.20.590 Sewer use surcharge.

A. Rate determination.

1. Sewer use surcharges shall be determined for industrial/commercial users contributing wastewater with strength in excess of normal domestic concentrations established by a method adopted and approved by the BOPU based on applicable waste strength and volume. Rates shall be established by a current schedule of charges adopted by the BOPU and approved by the governing body of the city of Cheyenne.

13.20.600 Billing.

A. Sewer use surcharges.

1. Sewer use surcharges shall be billed monthly and shall be based on the BOPU's approved rates. The sewer use surcharges shall be submitted with each user's monthly sewer bill.

13.20.610 Payment.

Each user shall pay for the services provided by the BOPU based on its use of the wastewater treatment system as determined by a flow measurement device.

13.20.620 Charges adopted.

User fees shall be established by a current schedule of charges adopted by the BOPU and approved by the governing body of the city of Cheyenne.

13.20.630 Review.

The BOPU will review its schedule of user fees and surcharges annually and make revisions as necessary to ensure adequate revenues to pay the costs of the wastewater treatment system, including but not limited to, operation and maintenance costs, interest and principal payments, construction costs, and costs to enlarge, replace and repair the system.

13.20.640 Pollutants.

Any user discharging any pollutants which cause an increase in the cost of managing the effluent or sludge from the treatment works, or any user discharging any substance which singly or by interaction with other substances causes increases in the costs of operation and maintenance of the wastewater treatment system, shall, at the discretion of the control authority, pay for such increased costs. The strength and characteristics of effluents shall be monitored by the responsible user's personnel and such users shall be assessed a surcharge according to rates as determined by the BOPU and approved by the governing body of the city of Cheyenne.

13.20.650 All users.

User charge rates shall apply to all users of the BOPU's treatment works, regardless of the location of the discharge unless specifically exempted by the BOPU. City and BOPU facilities are exempt.

Article 6. Enforcement: Administrative Remedies

13.20.660 Notification of violation.

When the control authority finds that a user has violated, or continues to violate, any provision of this chapter, an individual wastewater discharge permit, or order issued hereunder, or any other pretreatment standard or requirement, the control authority may serve upon that user a written notice of violation. Within ten (10) days of the receipt of such notice, an explanation of the violation and a plan for the satisfactory correction and prevention thereof, to include specific required actions, shall be submitted by the user to the control authority. Submission of such a plan in no way relieves the user of liability for any violations occurring before or after receipt of the notice of violation. Nothing in this section shall limit the authority of the control authority to take any action, including emergency actions or any other enforcement action, without first issuing a notice of violation.

13.20.670 Consent orders.

The control authority may enter into consent orders, assurances of compliance, or other similar documents establishing an agreement with any user responsible for noncompliance. Such documents shall include specific action to be taken by the user to correct the noncompliance within a time period specified by the document. Such documents shall have the same force and effect as the administrative orders issued pursuant to Sections 13.20.690 and 13.20.700 of this chapter and shall be judicially enforceable.

13.20.680 Show cause hearing.

The control authority may order a user which has violated, or continues to violate, any provision of this chapter, an individual wastewater discharge permit, or order issued hereunder, or any other pretreatment standard or requirement, to appear before the control authority and show cause why the proposed enforcement action should not be taken. Notice shall be served on the user specifying the time and place for the meeting, the proposed enforcement action, the reasons for such action, and a request that the user show cause why the proposed enforcement action should not be taken. The notice of the meeting shall be served personally or by registered or certified mail (return receipt requested) at least thirty (30) days prior to the hearing. Such notice may be served on any authorized representative of the user as defined in Section 13.20.030 and required by Section 13.20.260 A. A show cause hearing shall not be a bar against, or prerequisite for, taking any other action against the user.

13.20.690 Compliance order.

When the control authority finds that a user has violated, or continues to violate, any provision of this chapter, an individual wastewater discharge permit, or order issued hereunder, or any other pretreatment standard or requirement, the control authority may issue an order to the user responsible for the discharge directing that the user come into compliance within a specified time. If the user does not come into compliance within the time provided, sewer service may be discontinued unless adequate treatment facilities, devices, or other related appurtenances are installed and properly operated. Compliance orders also may contain other requirements to address the noncompliance, including additional self-monitoring and management practices designed to minimize the amount of pollutants discharged to the sewer. A compliance order may not extend the deadline for compliance established for a pretreatment standard or requirement, nor does a compliance order relieve the user of liability for any violation, including any continuing violation. Issuance of a compliance order shall not be a bar against, or a prerequisite for, taking any other action against the user.

13.20.700 Cease and desist orders.

A. When the control authority finds that a user has violated, or continues to violate, any provision of this chapter, an individual wastewater discharge permit, general permit or order issued hereunder, or any other pretreatment standard or requirement, or that the user's past violations are likely to recur, the control authority may issue an order to the user directing it to cease and desist all such violations and directing the user to:

1. Immediately comply with all requirements; and
2. Take such appropriate remedial or preventive action as may be needed to properly address a continuing or threatened violation, including halting operations and/or terminating the discharge. Issuance of a cease and desist order shall not be a bar against, or a prerequisite for, taking any other action against the user.

13.20.710 Administrative fines.

A. When the control authority finds that a user has violated, or continues to violate, any provision of this chapter, an individual wastewater discharge permit, general permit or order issued hereunder, or any other pretreatment standard or requirement, the control authority may fine such user in an amount not to exceed five thousand dollars (\$5,000.00). Such fines may be assessed on a per-violation, per-day basis. In the case of monthly or other long-term average discharge limits, fines may be assessed for each day during the period of violation.

B. The POTW shall have all collection remedies available to collect other service charges and any other remedy provided by law. Unpaid charges, fines and penalties shall constitute a lien against the individual user's property.

C. Users desiring to dispute such fines must file a written request for the control authority to

reconsider the fine along with full payment of the fine amount within ten (10) days of being notified of the fine. The control authority shall convene a hearing on the matter. In the event the user's appeal is successful, the payment together with any interest accrued at the prevailing rate shall be reimbursed to the user. In the event the appeal is unsuccessful, the control authority may add the costs of preparing administrative enforcement actions, such as notices and orders, to the fine.

D. Issuance of an administrative fine shall not be a bar against, or a prerequisite for, taking any other action against the user.

13.20.720 Emergency suspensions.

A. The control authority may immediately suspend a user's discharge whenever such suspension is necessary to stop an actual or threatened discharge, which reasonably appears to present, or cause an imminent or substantial endangerment to the health or welfare of persons. The control authority may also immediately suspend a user's discharge, after notice and opportunity to respond, that threatens to interfere with the operation of the POTW, or which presents, or may present, an endangerment to the environment.

1. Any user notified of a suspension of its discharge shall immediately stop or eliminate its discharge. In the event of a user's failure to immediately comply voluntarily with the suspension order, the control authority may take such steps as deemed necessary, including immediate severance of the sewer connection, to prevent or minimize damage to the POTW, its receiving stream, or endangerment to any individuals. The control authority may allow the user to recommence its discharge when the user has demonstrated to the satisfaction of the control authority that the period of endangerment has passed, unless the termination proceedings in Section 13.20.730 of this chapter are initiated against the user.

2. A user that is responsible, in whole or in part, for any discharge presenting imminent endangerment shall submit a detailed written statement, describing the causes of the harmful contribution and the measures taken to prevent any future occurrence, to the control authority prior to the date of any show cause or termination hearing under Sections 13.20.680 or 13.20.730 of this chapter.

B. Nothing in this section shall be interpreted as requiring a hearing prior to any emergency suspension under this section.

13.20.730 Termination of discharge.

A. In addition to the provisions in Section 13.20.350 of this chapter, any user who violates the following conditions is subject to discharge termination:

1. Violation of individual wastewater discharge permit or general permit conditions;
2. Failure to accurately report the wastewater constituents and characteristics of its discharge;

3. Failure to report significant changes in operations or wastewater volume, constituents, and characteristics prior to discharge;

4. Refusal of reasonable access to the user's premises for the purpose of inspection, monitoring, or sampling; or

5. Violation of the pretreatment standards in Section 13.20.050 of this chapter.

B. Such user will be notified of the proposed termination of its discharge and be offered an opportunity to show cause, pursuant to Section 13.20.680 of this chapter, why the proposed action should not be taken. Exercise of this option by the control authority shall not be a bar to, or a prerequisite for, taking any other action against the user.

13.20.740 Procedure for suspending or revoking permits, or suspending or terminating sewer service.

A. The control authority may suspend or revoke a user's permit, or suspend or terminate sewer service to a user, when such user violates federal or state laws or regulations relating to wastewater discharge, a provision of this chapter, or any permit or order issued hereunder. Suspensions or revocations of permits, and suspensions or terminations of sewer service, shall be made according to the following procedure:

1. The user shall be notified by the control authority by certified mail at least seven days prior to suspending or revoking a permit or suspending or terminating sewer service. Such notice shall set forth with particularity the reasons such action is contemplated.

2. Upon receipt of notice, the user may request a hearing before the control authority. Such request shall be in writing and received by the control authority within seven days of receipt of the notice. Failure of the user to request a hearing within seven days shall result in a waiver of the right to a hearing.

3. If a hearing is requested, the control authority shall set a hearing time, date and location. The control authority shall notify the user in writing by certified mail of the time, date and location of the hearing.

4. Hearings shall be conducted in accordance with the Wyoming Administrative Procedure Act.

5. If the control authority has reason to believe that a user is threatening the health, safety and welfare of the public, environment or the operation of the POTW, the control authority may immediately and without notice enter an order suspending or revoking a permit, or suspending or terminating sewer service. Notice of the order shall be served on the user, setting forth with particularity the grounds relied upon for the action taken. The user may, upon receipt of notice, request a hearing before the control authority and the hearing shall be conducted within two city business days.

Article 7. Enforcement: Judicial Remedies

13.20.750 Injunctive relief.

When the control authority finds that a user has violated, or continues to violate, any provision of this chapter, an individual wastewater discharge permit, general permit or order issued hereunder, or any other pretreatment standard or requirement, the control authority may petition the appropriate court in the state of Wyoming for the issuance of a temporary or permanent injunction, as appropriate, which restrains or compels the specific performance of the individual wastewater discharge permit, order, or other requirement imposed by this chapter on activities of the user. The control authority may also seek such other legal or equitable relief, including a requirement for the user to conduct environmental remediation. A petition for injunctive relief shall not be a bar against, or a prerequisite for, taking any other action against a user.

13.20.760 Civil penalties.

A. A user who has violated, or continues to violate, any provision of this chapter, an individual wastewater discharge permit, general permit or order issued hereunder, or any other pretreatment standard or requirement shall be liable to the BOPU for a maximum civil penalty of five thousand dollars (\$5,000.00) per violation, per day. In the case of a monthly or other long-term average discharge limit, penalties shall accrue for each day during the period of the violation.

B. The control authority may recover reasonable attorneys' fees, court costs, and other expenses associated with enforcement activities, including sampling and monitoring expenses, and the cost of any actual damages incurred by the BOPU.

C. In determining the amount of civil liability, the court shall take into account all relevant circumstances, including, but not limited to, the extent of harm caused by the violation, the magnitude and duration of the violation, any economic benefit gained through the user's violation, corrective actions by the user, the compliance history of the user, and any other factor as justice requires.

D. Filing a suit for civil penalties shall not be a bar against, or a prerequisite for, taking any other action against a user.

13.20.770 Criminal prosecution.

A. A user who willfully or negligently violates any provision of this chapter, an individual wastewater discharge permit, general permit or order issued hereunder, or any other pretreatment standard or requirement shall, upon conviction, be guilty of a misdemeanor, punishable by a fine of not more than seven hundred fifty dollars (\$750.00) per violation, per day, or imprisonment for not more than six months, or both.

B. A user who knowingly makes any false statements, representations, or certifications in any application, record, report, plan, or other documentation filed, or required to be maintained, pursuant to this chapter, individual wastewater discharge permit, general permit or order issued hereunder, or who falsifies, tampers with, or knowingly renders inaccurate any monitoring device or method required under this chapter shall, upon conviction, be guilty of a misdemeanor, punishable by a fine of not more than seven hundred fifty dollars (\$750.00) per violation, per day, or imprisonment for not more than six months, or both.

C. A user who willfully or negligently introduces any substance into the POTW which causes personal injury or property damage shall, upon conviction, be guilty of a misdemeanor, punishable by a fine of not more than seven hundred fifty dollars (\$750.00) per violation, per day, or imprisonment for not more than six months, or both. This penalty shall be in addition to any other cause of action for personal injury or property damage available under other applicable law.

13.20.780 Remedies; nonexclusive.

The remedies provided for in this chapter are not exclusive. The control authority may take any, all, or any combination of these actions against a noncompliant user. Enforcement of pretreatment violations will generally be in accordance with the BOPU water reclamation division's Enforcement Response Plan. However, the control authority may take other action against any user when the circumstances warrant. Further, the control authority is empowered to take more than one enforcement action against any noncompliant user.

Article 8. Enforcement: Supplemental Actions

13.20.790 Penalties for late reports.

A. A penalty not to exceed five thousand dollars (\$5,000.00) shall be assessed to any user for each day that a report required by this chapter, or a permit or order issued hereunder is late, beginning five days after the date the report is due. Higher penalties may also be assessed where reports are more than thirty (30) days late. Actions taken by the control authority to collect late reporting penalties shall not limit the control authority's authority to initiate other enforcement actions that may include penalties for late reporting violations.

B. Users desiring to dispute such penalties must file a written request with the control authority to reconsider the penalty along with full payment of the penalty amount within ten days of being notified of the penalty. The control authority shall convene a hearing on the matter. In the event the user's appeal is successful, the payment together with any interest accrued at the prevailing rate shall be reimbursed to the user. In the event the appeal is unsuccessful, the control authority may add the costs of preparing administrative enforcement actions, such as notices and orders, to the penalty amount.

13.20.800 Liability insurance.

The control authority may decline to issue or reissue an individual wastewater discharge

permit or general permit to any user who has failed to comply with any provision of this chapter, a previous individual wastewater discharge permit, general permit or order issued hereunder, or any other pretreatment standard or requirement, unless the user first submits proof that it has obtained financial assurances sufficient to restore or repair damage to the POTW caused by its discharge.

13.20.810 Payment of outstanding fees and penalties.

The control authority may decline to issue or reissue an individual wastewater discharge permit or general permit to any user who has failed to pay any outstanding fees, fines or penalties incurred as a result of any provision of this chapter, a previous individual wastewater discharge permit, general permit or order issued hereunder.

13.20.820 Water supply severance.

Whenever a user has violated or continues to violate any provision of this chapter, an individual wastewater discharge permit, general permit or order issued hereunder, or any other pretreatment standard or requirement, water service to the user may be severed. Service will recommence, at the user's expense, only after the user has satisfactorily demonstrated its ability to comply.

Article 9. Affirmative Defenses to Discharge Violations

13.20.830 Prohibited discharge standards.

A. A user shall have an affirmative defense to an enforcement action brought against it for noncompliance with the general prohibitions in Section 13.20.050 A. of this chapter or the specific prohibitions in Sections 13.20.050 B. 1. through 16. of this chapter if it can prove that it did not know, or have reason to know, that its discharge, alone or in conjunction with discharges from other sources, would cause pass through or interference and that either:

1. A local limit exists for each pollutant discharged and the user was in compliance with each limit directly prior to, and during, the pass through or interference; or

2. No local limit exists, but the discharge did not change substantially in nature or constituents from the user's prior discharge when the BOPU was regularly in compliance with its WYPDES permit, and in the case of interference, was in compliance with applicable sludge use or disposal requirements.

Article 10. Miscellaneous provisions

13.20.840 Pretreatment charges and fees; BOPU fee schedule.

A. The BOPU may adopt reasonable fees for reimbursement of costs of setting up and operating the BOPU pretreatment program, which may include:

1. Fees for wastewater discharge permit applications including the cost of processing such applications;

2. Fees for monitoring, inspection, and surveillance procedures including the cost of collection and analyzing a user's discharge, and reviewing monitoring reports and certification statements submitted by users;

3. Fees for reviewing and responding to accidental discharge procedures and construction;

4. Fees for filing appeals;

5. Fees to recover administrative and legal costs (not included in Section 13.20.840 A. 2.) associated with the enforcement activity taken by the control authority to address IU noncompliance; and

6. Other fees as the BOPU may deem necessary to carry out the requirements contained herein. These fees relate solely to the matters covered by this chapter and are separate from all other fees, fines, and penalties chargeable by the BOPU.

13.20.850 Severability.

Sections, paragraphs, sentences, clauses and phrases contained in this chapter are severable. If any phrase, clause, sentence, paragraph or section of the ordinance from which this chapter is derived, including amendments thereto, is declared to be unconstitutional or otherwise invalid, such unconstitutionality or invalidity shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 2. That this ordinance is in full force and effect upon its approval and publication.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

(S E A L)

ATTEST:

Richard L. Kaysen, Mayor

Carol Intlekofer, City Clerk

Publish: Wyoming Tribune-Eagle

